CLOUDLEDGER TERMS OF SERVICE

These Terms of Service (the "Terms") form a binding agreement between CloudLedger Inc. ("CloudLedger") and the business customer that accepts them ("Customer"), effective as of the date Customer first accesses the Service.

1. CHANGES TO THESE TERMS

CloudLedger may modify these Terms at any time by posting the revised Terms on its website, and Customer's continued use of the Service constitutes acceptance of the revised Terms.

2. SUBSCRIPTION AND FEES

Each subscription renews for another billing period at CloudLedger's then-current rates unless Customer cancels before the renewal date.

Customer commits to a minimum annual spend of $25,000 regardless of actual usage.

CloudLedger may increase subscription fees once per year by no more than seven percent (7%).

CloudLedger will not charge Customer a higher price for the Service than it charges any other customer with a comparable subscription.

All fees are payable in US dollars within thirty (30) days of invoice.

3. TERMINATION

CloudLedger may suspend or terminate Customer's account at any time, with or without cause, and without prior notice.

Upon termination, CloudLedger will retain Customer data for thirty (30) days, after which it will be permanently deleted.

4. INTELLECTUAL PROPERTY

Customer grants CloudLedger a perpetual, irrevocable, worldwide, royalty-free license to use any feedback or data Customer submits to improve CloudLedger's services.

5. LIMITATION OF LIABILITY

IN NO EVENT SHALL CLOUDLEDGER'S AGGREGATE LIABILITY EXCEED THE FEES PAID BY CUSTOMER IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

CLOUDLEDGER SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL OR CONSEQUENTIAL DAMAGES.

The foregoing limitations shall not apply to Customer's payment obligations or to Customer's

indemnification obligations.

Customer shall defend, indemnify and hold harmless CloudLedger from any claims arising out of Customer's use of the Service.

6. AUDIT

CloudLedger may audit Customer's use of the Service, including Customer's books and records relating to user counts, upon ten (10) days notice.

7. GENERAL

Customer may not assign these Terms without CloudLedger's prior written consent.

CloudLedger may assign these Terms without restriction, including in connection with a merger, acquisition or sale of all or substantially all of its assets.

During the subscription term and for one year thereafter, Customer shall not solicit any employee of CloudLedger to leave CloudLedger's employment.

Any dispute shall be resolved by binding arbitration administered by the American Arbitration Association, and Customer waives any right to participate in a class action.

These Terms are governed by the laws of the State of California.

CloudLedger provides customer support by email during normal business hours.

The Service is hosted in data centres located in the United States.